Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

SECOND REGULAR SESSION

RESOLUTION NO. 355

RESOLUTION RESPECTFULLY EXPRESSING THE STRONG SENSE AND RESOLVE OF THE BANGSAMORO PARLIAMENT THAT FORMER *LUPONG TAGAPAGPAGANAP PAMPOOK* (LTP) CHAIRMAN, FORMER AUTONOMOUS REGION IN MUSLIM MINDANAO (ARMM) AND MAGUINDANAO GOVERNOR, FORMER MORO NATIONAL LIBERATION FRONT (MNLF) AND MORO ISLAMIC LIBERATION FRONT (MILF) LEGAL COUNSEL DATU ZACARIA CANDAO AND FORMER CHAIR OF BANGSAMORO DEVELOPMENT AGENCY DR. ABAS CANDAO BE GRANTED EXECUTIVE CLEMENCY BY HIS EXCELLENCY FERDINAND R. MARCOS, JR.

WHEREAS, our people's attainment of the establishment of the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM) is the coveted fruit of the long-drawn Moro people's painstaking collective sacrifices, of known and unknown men, of leaders who went out of their way ready and willing to give up personal positions and powers for the greater interest of the Bangsamoro;

WHEREAS, the leadership of the Bangsamoro struggle is not limited to those who are in the rank-and-file, let alone the hierarchy of the Moro liberation fronts, but come as well from among the Bangsamoro thinkers, ideologues, professionals and academe;

WHEREAS, the Bangsamoro Transition Authority (BTA), with powers coming from the Office of the President and mandated by Republic Act No. 11054, otherwise known as the *Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao* (OLBARMM/BOL), acknowledges and recognizes the contributions of each and every mujahideen operating in the underground or aboveground, and in truth, the powers of the BTA and the passage of the organic act is the historic testament of the resilient and indomitable spirit of the leaders and foot soldiers of the Moro liberation fronts, as well as the unsung non-combatants that constitute the mass base of the Moro struggle;

WHEREAS, former ARMM and Maguindanao Governor Zacaria Candao and former executive Secretary Abas Candao (founding Chairman of Bangsamoro Development Agency) were among the selfless leaders of the Bangsamoro who voluntarily conscripted themselves and later spearheaded the pursuit of our lifelong aspirations and happiness as one united people in one united Bangsamoro Homeland;

WHEREAS, former Governor Candao, being a lawyer, was a senior legal officer of the MNLF since 1974 and was a key figure in the negotiations of the 1976 Tripoli Agreement in Libya. He later became legal counsel of the MILF after the split with the MNLF; Additionally, Hadji Ahod "Murad" Ebrahim, Interim Chief Minister of the BARMM, renewed the appointment of former Governor Candao as Senior Political and Legal Adviser to the MILF Chairman, effective to this day;

WHEREAS, he was appointed LTP Chairman from 1986-1987 for Region XII, and was subsequently elected the first Regional Governor of ARMM in 1990, but Datu Zacaria A. Candao nonetheless continued to help MILF Chairman Salamat Hashim by serving as his Senior Legal and Political Adviser. As ARMM Governor, he was instrumental in no small measure in supporting the push for the full implementation of the 1976 Tripoli Agreement which resulted in the signing of the 1996 Government of the Republic of the Philippines - Moro National Liberation Front- Organization of the Islamic Conference (GRP-MNLF-OIC) Final Peace Agreement;

WHEREAS, former Governor Candao was indispensably instrumental in the initiation of the GRP (now Government of the Philippines or GPH) -MILF peace process in 1997 which was disrupted by the 2000 All-Out War against the MILF. Undaunted, he relentlessly worked for the resumption of

the peace process but which unfortunately led to the bungled and botched Memorandum of Agreement on Ancestral Domain;

WHEREAS, undeniably, the peace efforts of Gov. Datu Zacaria A. Candao since 1976 until 2006 served as major basis for the continuance of the peace process between the GPH and MILF which ultimately culminated in the signing of the Comprehensive Agreement on the Bangsamoro (CAB);

WHEREAS, former Governor Candao and former executive Secretary Dr. Abas Candao devoted themselves wholeheartedly to the cause of the Bangsamoro under the suspicious eyes and ears of government security agencies treading on dangerous paths amidst jealous and ambitious interests of many politicians and political clans in Maguindanao and the Bangsamoro homeland;

WHEREAS, former Governor Candao was included in many orders of battle issued by the government security apparatus and the military even during his incumbency as appointed and elected Governor of Maguindanao and the defunct ARMM;

WHEREAS, it is worthy to note that Datu Zacaria A. Candao holds the distinction of having been twice appointed Governor of Maguindanao (First by former President E. Ferdinand Marcos, in 1976 and second by former President Corazon C. Aquino in 1986), thrice elected as Governor of the Maguindanao, the first elected Regional Governor of ARMM, and the last appointed Chairman of the defunct LTP;

WHEREAS, in the year 2000, during the All-Out War waged by President Joseph Estrada, against the MILF, former Governor Candao and Dr. Abas Candao along with some key Moro government officials were included in an AFP Intelligence report as political and financial supporters of the Moro Islamic Liberation Front;

WHEREAS, former Governor Candao, and Dr. Abas Candao as Executive Secretary, were accused of corruption from way back in 1994 and were convicted in 2008;

WHEREAS, for humanitarian reasons and being of late age, Governor Candao (80 years old) and Dr. Abas Candao (77 years old) are entitled and qualified to be granted executive clemency by the President; even when they are considered fugitives from justice;

WHEREAS, under Section 19, Article VII of the 1987 Constitution, except in cases of impeachment or as otherwise provided therein, the President may grant *reprieves, commutations, and pardons, and remit fines and forfeitures,* after conviction by final judgment;

WHEREAS, executive clemency rests solely and exclusively within the sound discretion of President Ferdinand Romualdez Marcos, Jr., and he alone can exercise the power to grant clemency to prevent miscarriage of justice or to correct manifest injustice, and executive clemencies can be granted to anyone whether or not the beneficiary applied or aspired for clemency;

WHEREAS, considering the political backgrounds of former Governor Zacaria Candao and Dr. Abas Candao, granting them executive clemency falls squarely within the ambit and spirit of the Comprehensive Agreement of the Bangsamoro;

WHEREAS, the grant of executive clemency to former Governor Zacaria Candao and Dr. Abas Candao will in effect solidify and strengthen the confidence of the Bangsamoro in the peace agreements, not only as instruments of peace but as a catalyst of justice as well:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority, To express the strong sense and resolve of the Bangsamoro Parliament that former LTP Chairman, former ARMM and Maguindanao Governor Zacaria Candao and Dr. Abas Candao, former founding Chair of the Bangsamoro Developmental Agency be granted clemency by His Excellency Ferdinand R. Marcos, Jr.

RESOLVED, FURTHER, That this Resolution be forwarded to the Office of the President Ferdinand R. Marcos, Jr., for information.

ADOPTED, *Dhul Hijjah* 04, 1444/June 22, 2023.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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